KRISTIAN CUKU · THE DEAL ARCHITECT

Before you sign **with a developer.**

10 points to check first.

Your commission is decided by clauses
you signed months before the sale.
Read them before your next registration.



Built from a structured analysis of real developer-broker agreements.
Each point: what to look for · why it matters · what to ask.

Educational guide. Not legal advice.

POINT 01

RISK

LOW WATCH HIGH

Commission trigger

When you actually get paid.

TYPICAL WORDING

7. COMMISSION ENTITLEMENT

Commission shall become payable only upon receipt by the Developer of twenty percent (20%) of the Purchase Price, all registration fees and all post-dated cheques for the remaining instalments.

→ *your payday is tied to the buyer being locked in.*

WHAT IT DOES

The sale is not enough. You are paid only after the buyer has paid a threshold and handed over every future cheque.

WHY IT MATTERS

The months between closing and the trigger are yours to carry: marketing costs, team salaries, and the risk the buyer walks away.

ASK BEFORE YOU SIGN

1. **What exactly triggers payment, and is it written in one clause?**
2. **How many days after the trigger is commission paid?**

Educational guide. Not legal advice.

POINT 02

RISK

LOW WATCH HIGH

Lead registration

Your client has an expiry date.

TYPICAL WORDING

5. REGISTRATION OF PROSPECTS

A Prospect registration shall remain valid for three (3) months from the Introduction Date, after which the Broker shall have no entitlement in respect of that Prospect.

→ *when the clock runs out, the client is no longer yours.*

WHAT IT DOES

Your claim on a client lasts only as long as the registration window. Slow buyers can close after it expires.

WHY IT MATTERS

Off-plan decisions often take longer than three months. The work is yours; the commission may not be.

ASK BEFORE YOU SIGN

1. **How do I register a lead and get written confirmation with a date?**
2. **Can the registration be extended while the client is still active?**

Educational guide. Not legal advice.

POINT 03

RISK

LOW WATCH HIGH

Existing client

The client you found, they already "knew".

TYPICAL WORDING

7.3 EXCLUSIONS

No Commission shall be payable where the Prospect was, as at the Introduction Date, an existing customer of the Developer or had been previously introduced by any other person.

→ *the database that decides is not yours.*

WHAT IT DOES

If the developer's records show the client before you, there is no commission. The proof sits in their system.

WHY IT MATTERS

Clients talk to several brokers and visit sales centres. One earlier enquiry can be enough to cancel your fee.

ASK BEFORE YOU SIGN

1. **How is an "existing customer" proven, and can I see the record?**
2. **Is there a time limit, after which an old enquiry no longer counts?**

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POINT 04

RISK

LOW WATCH HIGH

Commission rates

The rate can change after the work is done.

TYPICAL WORDING

8. COMMISSION STRUCTURE

The Developer may amend the Commission rates, structure and policies at any time by notice sent by email, and such changes shall be deemed accepted by the Broker.

→ *an email can rewrite the deal.*

WHAT IT DOES

The commission you planned on can be changed by a simple email, without your signature.

WHY IT MATTERS

You invest in marketing and clients based on one rate. The rate that applies is the one in force when the developer decides.

ASK BEFORE YOU SIGN

1. **Is the rate fixed in writing on the date I register the client?**
2. **Do changes apply only to new registrations, not ongoing deals?**

POINT 05

RISK

LOW WATCH HIGH

Discounts

The buyer's discount comes out of your pocket.

TYPICAL WORDING

8.4 DISCOUNTS

Where a discount on the Purchase Price is approved at the request of the Broker, the Developer may, at its discretion, reduce the Commission payable in respect of that Sale.

→ *negotiating for your client can cost you.*

WHAT IT DOES

If you push for a better price for your buyer, the developer can take part of it from your commission.

WHY IT MATTERS

The clause quietly discourages brokers from negotiating. Buyers rarely know it exists.

ASK BEFORE YOU SIGN

1. **Who bears an approved discount, and is that agreed before the sale?**
2. **Is any commission reduction capped and confirmed in writing?**

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POINT 06

RISK

LOW WATCH HIGH

Clawback

Your commission is never final.

TYPICAL WORDING

7.5 REFUND OF COMMISSION

In the event of cancellation, default or refund, the Developer may recover any Commission already paid or set it off against future Commissions due to the Broker.

→ *money paid today can be taken from next year.*

WHAT IT DOES

If the sale falls apart later, the commission can be reclaimed, or deducted from your next deals.

WHY IT MATTERS

Buyer defaults often happen long after you were paid. The risk stays on your books for years.

ASK BEFORE YOU SIGN

1. **Is clawback limited to cases where the buyer is actually refunded?**
2. **After how long does a paid commission become final?**

POINT 07

RISK

LOW WATCH HIGH

Strict compliance

One missed form can cancel the fee.

TYPICAL WORDING

2.5 CONDITIONS

Failure by the Broker to strictly comply with the Developer's policies and procedures, as amended from time to time, shall extinguish the Broker's right to claim Commission.

→ *the rules can change. the penalty does not.*

WHAT IT DOES

A procedural mistake, such as a late form or a missing document, can remove your right to the commission entirely.

WHY IT MATTERS

The policies are written and updated by the developer. You are bound by versions you may never have seen.

ASK BEFORE YOU SIGN

1. **Can the policies be attached to the agreement as they stand today?**
2. **Is there a period to correct a mistake before the right is lost?**

Educational guide. Not legal advice.

POINT 08

RISK

LOW WATCH HIGH

Payment terms

Paid, eventually. In parts.

TYPICAL WORDING

6.6 PAYMENT

Commission shall be paid in two (2) instalments, each within sixty (60) days of the Developer's acceptance of a valid invoice.

→ *the clock starts when they say it starts.*

WHAT IT DOES

Commission is often split and paid weeks or months after each invoice is accepted, not after it is sent.

WHY IT MATTERS

Your cash flow depends on dates you do not control, while your costs run every month.

ASK BEFORE YOU SIGN

1. **What makes an invoice "valid", and how fast is it confirmed?**
2. **Is there any compensation if payment is late?**

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POINT 09

RISK

LOW WATCH HIGH

Termination

One side can leave. Quietly.

TYPICAL WORDING

11. TERMINATION

The Developer may terminate this Agreement for convenience upon fifteen (15) days' written notice, and the Broker waives any requirement for a court order.

→ *no reason needed. no court involved.*

WHAT IT DOES

The developer can end the relationship without cause. Some agreements also have you waive going to court in advance.

WHY IT MATTERS

Deals you are still working on may lose their commission the day the agreement ends.

ASK BEFORE YOU SIGN

1. **Are commissions on clients I registered before termination still paid?**
2. **Is the right to terminate, and the notice period, the same for both sides?**

Educational guide. Not legal advice.

POINT 10

RISK

LOW WATCH HIGH

Liability

The risk flows to your side.

TYPICAL WORDING

10. INDEMNITY

The Broker shall indemnify the Developer against all claims arising from the Broker's services. The Developer shall have no liability to the Broker under this Agreement.

→ *you cover them. they do not cover you.*

WHAT IT DOES

You protect the developer against claims, but the developer owes you nothing if things go wrong on their side.

WHY IT MATTERS

When a project is late or changes, the buyer's anger reaches the broker first. The agreement leaves you alone with it.

ASK BEFORE YOU SIGN

1. **Is the indemnity limited to my own mistakes and capped?**
2. **What happens if the developer's delay leads to claims against me?**

WHAT TO DO NEXT

Three steps.

Before your next registration.

01 **Ask for the agreement and policy in writing.**

Before your first registration. Including the current commission policy.

02 **Read it against these 10 points.**

Mark every clause where the answer to "ask before you sign" is unclear.

03 **Send me the clause you are unsure about.**

Reply in our chat. I will tell you what it means and what to ask.

I spent years on the broker's side of these contracts.
Now I show brokers what to read first.

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